

HOUSE No. 967**The Commonwealth of Massachusetts**

PRESENTED BY:

Natalie M. Higgins and Kimberly N. Ferguson*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act banning the retail sale of dogs, cats, and rabbits in new pet shops.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/15/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/15/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/21/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>1/31/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/4/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>2/4/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>2/4/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>2/5/2025</i>
<i>Brian M. Ashe</i>	<i>2nd Hampden</i>	<i>2/5/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/6/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>2/7/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>2/7/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/8/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>2/8/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>2/8/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/10/2025</i>
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>2/11/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/14/2025</i>

<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>2/14/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>2/18/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>2/18/2025</i>
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>2/19/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>2/27/2025</i>
<i>William C. Galvin</i>	<i>6th Norfolk</i>	<i>2/27/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/27/2025</i>
<i>Joseph W. McGonagle, Jr.</i>	<i>28th Middlesex</i>	<i>2/27/2025</i>
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>3/4/2025</i>
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>3/4/2025</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>3/4/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/4/2025</i>
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>3/4/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>3/4/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>3/4/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>3/4/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>3/4/2025</i>
<i>Michael J. Finn</i>	<i>6th Hampden</i>	<i>3/5/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/5/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>3/5/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>3/5/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>3/5/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>3/5/2025</i>
<i>Hadley Luddy</i>	<i>4th Barnstable</i>	<i>3/5/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>3/5/2025</i>
<i>Sean Reid</i>	<i>11th Essex</i>	<i>3/6/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>3/6/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/7/2025</i>
<i>Jay D. Livingstone</i>	<i>8th Suffolk</i>	<i>3/7/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>3/7/2025</i>
<i>Kevin G. Honan</i>	<i>17th Suffolk</i>	<i>3/7/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>3/16/2025</i>
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>3/16/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/16/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>3/28/2025</i>
<i>Tricia Farley-Bouvier</i>	<i>2nd Berkshire</i>	<i>3/28/2025</i>
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>4/7/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>4/8/2025</i>
<i>Greg Schwartz</i>	<i>12th Middlesex</i>	<i>4/8/2025</i>

<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>4/18/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>4/23/2025</i>
<i>Michelle M. DuBois</i>	<i>10th Plymouth</i>	<i>4/23/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>4/23/2025</i>
<i>Jack Patrick Lewis</i>	<i>7th Middlesex</i>	<i>5/5/2025</i>
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>5/5/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>6/11/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>6/17/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>6/23/2025</i>
<i>Jessica Ann Giannino</i>	<i>16th Suffolk</i>	<i>6/27/2025</i>
<i>Meghan K. Kilcoyne</i>	<i>12th Worcester</i>	<i>7/7/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>7/23/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>7/29/2025</i>
<i>Bruce J. Ayers</i>	<i>1st Norfolk</i>	<i>10/21/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>10/22/2025</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>10/22/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>11/5/2025</i>
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>2/3/2026</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>2/23/2026</i>

HOUSE No. 967

By Representatives Higgins of Leominster and Ferguson of Holden, a petition (accompanied by bill, House, No. 967) of Natalie M. Higgins, Kimberly N. Ferguson and others for legislation to further regulate to sale of certain domestic animals. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act banning the retail sale of dogs, cats, and rabbits in new pet shops.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 39A of chapter 129 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting, in line 1, before the word “Every”, the
3 following letter:- (a)

4 SECTION 2. Said section 39A is hereby further amended by striking out, in line 13, the
5 word “section”, and inserting in place thereof the following word:- subsection

6 SECTION 3. Said section 39A is hereby further amended by inserting after subsection (a)
7 the following 4 subsections:-

8 (b) No person engaged in the business of operating a pet shop regulated under 330 CMR
9 12.00 for which a license must be obtained pursuant to subsection (a) shall sell or offer for sale a
10 dog, cat, or rabbit.

(c) Subsection (b) shall not be construed to prohibit a pet shop regulated under 330 CMR 12.00 from offering space to an animal rescue or shelter organization to showcase dogs, cats, or rabbits for adoption so long as the pet shop does not have an ownership interest in the animals offered for adoption.

(d) Subsection (b) shall not apply to a pet shop lawfully selling or offering for sale dogs, cats, or rabbits in the Commonwealth on or before the effective date of this act, provided that: (i) the pet shop maintains a valid license to operate and engage in such sales; (ii) the pet shop remains in the same ownership as existed on the effective date of this act; (iii) the pet shop sells or offers for sale dogs, cats, or rabbits only from the location listed on the applicable license; and (iv) the specific type of animal sold by the pet shop, whether dog, cat, or rabbit, is an animal that the pet shop is documented to have engaged in selling or offering for sale for at least one year prior to the effective date of this act.

(e) Notwithstanding the provisions of section 43 of this chapter, a person who violates subsection (b) of this section shall be: (i) assessed a civil penalty of not more than \$1,000 for the first offense, not more than \$2,500 for the second offense, and not more than \$5,000 for third and subsequent offenses; and (ii) subject to suspension or revocation of the pet shop license. Each advertisement or offer for sale or actual sale of an animal in violation of subsection (b) shall constitute a separate violation.

SECTION 4. Nothing in section 39A of chapter 129 of the General Laws shall affect the authority of any town, city, or other locality to regulate or prohibit the sale of dogs, cats, or rabbits.

SECTION 5. This act shall take effect on January 1, 2027.